

24STCV27912 24STCV27912

County: los-angeles

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Case Number: 24STCV27912 Hearing Date: September 14, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

ELENA

M. ROSCHDI, et al.,

Plaintiff,

vs.

AGAM PROPERTIES, INC., et al.,

Defendant.

Case No.:

24STCV27912

Hearing

Date:

September 14, 2026

ORDER

GRANTING MOTION FOR ORDER PERMITTING DISCOVERY OF DEFENDANTS' FINANCIAL CONDITION

I. BACKGROUND

During Plaintiffs Elena M.

Roschdi ("Elena"), Nasser Roschdi ("Nasser"), Sara Raquel Roschdi ("Sara"), and Sanam Rebecca Roschdi's ("Sanam") tenancy with landlord Defendants Agam Properties, Inc. ("Agam") and Pacifica Mortgage Fund, LLC ("PMF"), Defendants allegedly failed to make requested repairs, violating Plaintiffs' implied warranty of habitability. Plaintiffs sued Defendants for seven causes of action, including tortious breach of warranty of habitability.

On May 21, 2026, Plaintiffs filed the instant motion for order permitting discovery of Defendants' financial condition. Defendants filed an opposition. Plaintiffs filed a reply.

II. Objections

A. Defendants' Objections

All of Defendants' objections are OVERRULED, unless otherwise indicated below:

1. The objection to Plaintiff's Exhibit 6 is SUSTAINED as irrelevant.

2. The objection to Plaintiff's Exhibit 7 is SUSTAINED as irrelevant.

3. The objection to Plaintiff's Exhibit 8 is SUSTAINED as hearsay, and lack of authentication.

B. Plaintiffs' Objections

All of Plaintiffs'

objections are SUSTAINED on the basis of lack of personal knowledge and foundation.

III. LEGAL STANDARD

A plaintiff may not conduct pretrial discovery into a defendant's financial condition absent a court order permitting such discovery. (Civ. Code § 3295, subd. (c.))^[1]) In making the order, the court must find, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established a "substantial probability" of prevailing on a claim for punitive damages. (Ibid.) A court must weigh the evidence submitted in favor of and in opposition to the motion and find that it is "very likely" that the plaintiff will prevail on his or her claim for punitive damages. (Jabro v. Superior Court (2002) 95 Cal.App.4th 754, 758.) It is not sufficient for a plaintiff to simply demonstrate a prima facie showing that they have a reasonable probability of prevailing sufficient to defeat summary judgment. (Ibid.)

IV. DISCUSSION

Plaintiffs request the Court issue an order, pursuant to section 3295, allowing Plaintiffs to conduct discovery into Defendant's financial condition. The Court may only enter such an order upon a showing that Plaintiffs have a substantial probability of prevailing on their section 3294 punitive damages claims via noticed motion and affidavits. (§ 3295, subd. (c).)

Plaintiffs' complaint alleges Plaintiffs are entitled to punitive damages as Defendants oppressively and/or fraudulently refused to repair, maintain, and exterminate Plaintiffs' leased home, despite multiple requests by Plaintiffs, on the basis that the rental agreement contained an illegal 'as-is' clause making Plaintiffs responsible for all repairs. (Complaint ¶¶ 9, 38, 32, Ex. B.) Plaintiffs specifically alleged that, during their tenancy, the subject property experienced a cockroach infestation, rodent infestation, widespread water leaks and chronic mold, a lack of functional heaters, and physical defects, all of which Defendants failed to fix. (Complaint ¶ 10.)

All residential leases contain an implied warranty of habitability requiring that the landlord maintain and fix the property to comply with statutory and regulatory requirements, regardless of other provisions of the lease agreement. (Green

v. Superior Court (1974, 10 Cal.3d 616, 629.) Case law holds punitive damages are authorized for tortious breach of the warranty of habitability, one of Plaintiffs' articulated causes of action, so long as the plaintiff meets the threshold for establishing punitive damages. (See Smith v. David (1981) 120 Cal.App.3d 101, fn 3.) Punitive damages may only be imposed upon a showing a defendant is guilty of oppression, fraud, or malice. (§ 3294, subd. (a).)

In support of their claims, Plaintiffs provided affidavits and evidence demonstrating that Defendants knowingly relied upon the lease contract's illegal 'as-is' clause to avoid making requested repairs pursuant to their obligations under the warranty of habitability. According to Elena, issues arose as early as 2013 and ranged from inoperable appliances to sewage overflows to vermin/mold infestations. (Mot., Elena Decl. ¶ 4.) Elena provided a 2016 e-mail between Elena and Defendants' agent, Scott Radin ("Radin"), in which Elena notified Defendants that Plaintiffs lacked hot water, violating section 1941.1, subdivision (3); Defendants stated Plaintiffs were responsible for all repairs and maintenance. (Id. at ¶ 5, Ex. 2.) Sara contacted Radin via e-mail in August 2024, identifying plumbing issues, mold growth, and rainwater seepage (violating Health and Safety Code § 17920.3, subd. (a)); although Radin initially expressed interest in reviewing the issues, Radin later responded that Defendants would not make any repairs to the home unless Plaintiffs agreed to a new rental rate (approximately \$1,000.00 more per month), relying upon the 'as-is' clause of the initial lease. (Mot., Sara Decl. ¶¶ 3-5, Ex. 4-5.) At bare minimum, Plaintiffs demonstrated that as early as 2016, Defendants refused to perform requested and necessary repairs by relying upon an illegal contract provision contrary to public policy.

Defendants rely upon the existence of the 'as-is' provision and argues that, at best, this reflects a dispute as to the terms of the contract. Defendants also argue that Plaintiffs testified at their deposition that the initial lease was only intended to apply for a short term while Plaintiffs looked for alternate, more affordable housing. However, neither of these arguments address the fact a residential lease agreement that waives or modifies the implied warranty of habitability is void as a matter of public policy, unless the provision agrees that the tenant takes on the obligation to repair in consideration for a reduced rental rate. (§ 1942.1.) Nothing within the agreement specifies Plaintiffs were paying a reduced rate in return for undertaking repair responsibilities. (Mot., Elena Decl. ¶ 2, Ex. 1.) Defendants have provided no evidence that otherwise demonstrates this

obligation came with a reduced rental rate. Therefore, the evidence shows any reliance upon the 'as-is' provision was without merit; failure to repair when provided with notice while relying upon void portions of a contract is substantially likely to establish Defendants were acting oppressively and/or fraudulently, providing a basis for punitive damages.

The Court finds Plaintiffs have sufficiently established a substantial probability of prevailing on a claim for punitive damages as to tortious breach of warranty of habitability. Defendants request that any order permitting discovery into financial condition be narrowly tailored to information reasonably necessary for purposes of punitive damages. Section 3295 already outlines the limits of financial discovery: profits Defendants gained by virtue of wrongful course of conduct and the financial condition of the defendant. (§ 3295, subd. (a)(1-2).) The Court adopts the statutory limits of discovery.

IV. CONCLUSION

Plaintiffs' motion for order permitting financial discovery is GRANTED. Plaintiffs are entitled to serve discovery concerning section 3295, subdivision (a)(1-2).

Plaintiffs are ordered to give notice.

DATED:

September 14, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by

the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the California Civil Code.